

IN THE COMMISSION FOR CONCILIATION MEDIATION AND ARBITRATION

Case Ref. Number: **WECT23564-25**

In the matter between

WILBUR MATTHEE

Applicant

And

MEDSCHEME HOLDINGS

Respondent

NOTICE OF OPPOSITION OF CONDONATION APPLICATION

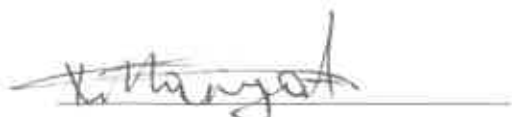
Your condonation application dated **05 December 2025**, is hereby acknowledged and refers.

In response to the condonation application by the applicant **BE PLEASED TO TAKE NOTE THAT** the Respondent hereby files its Notice of Opposition.

PLEASE TAKE FURTHER NOTE THAT the answering affidavit of **Mr XOLILE VINCENT MANYATI** will be used in support of this notice of opposition.

The respondent will accept all documents in this matter at the following email address:
IR@afrocentrichealth.com.

Signed at **Johannesburg** on the **10th** day of **December 2025**.



XOLILE VINCENT MANYATI

Respondent representative

To: Wilbur Matthee
Per email: wilburmat@gmail.com

And to: Case Management Officer
CCMA
Per email: CMS@CCMA.org.za

**IN THE COMMISSION FOR CONCILIATION MEDIATION AND ARBITRATION
HELD AT CAPE TOWN**

Case Ref. Number: **WECT23564-25**

In the matter between

WILBUR MATTHEE

APPLICANT

And

MEDSCHEME HOLDINGS

RESPONDENT

RESPONDENT'S ANSWERING AFFIDAVIT

I the undersigned **Mr. Xolile Vincent Manyathi** do hereby make an oath and say:

1. I am an adult male and the respondent in this matter. I am duly authorized to make this affidavit as a Senior Employee Relations Specialist employed by Afrocentric Health (Pty) Ltd, the holding company.
2. I am duly authorized to depose of this affidavit. The facts contained herein are both true and correct and fall within my personal knowledge, unless otherwise indicated or the contrary appears from the facts.
3. The applicant in this matter is **Mr. Wilbur Matthee**, who is employed as a care coordinator at Gems business unit under Medscheme Holdings.

4. LEGAL FRAMEWORK:

- 4.1 In terms of the Labour Relations Act 66 of 1995, as amended, if there is a dispute about unfair labour practice, the employee may refer the dispute in writing, however the referral must be made within **90 days** of the date of the act or omission which allegedly constitutes the unfair labour practice. If the employee shows good cause at any time, the council or the commission may permit the employee to refer the dispute after the 90-day time limit has expired.

4.2 Section 191 (2) stipulates that if the applicant shows good cause at any time, the council or CCMA may permit the applicant to refer the dispute after the 90-day time limit has expired. In the case of **Shoprite Checkers (Pty) Ltd CCMA & Others (1998) 19 ILJ 892 (LC) p 21-22, (1998) 5 BLLR 510 (LC)** the honourable judge summarised the law in this regard as follows: "*Section 191(2) enjoins an applicant to show good cause before a commission may permit her to refer the dispute after the time limit has expired. The section makes it clear that condonation is not there merely for the asking. The applicant must tender an adequate explanation for the delay. The Commissioner must also consider this explanation. Due regard must be had to the other generally accepted requirements for the grant of condonation as contemplated in the words good cause....*"

4.3 From the above, it is clear that before the commissioner can grant condonation, the applicant must furnish **justifiable reasons** for the late request. The fundamental question is, therefore, whether the applicant has good grounds for not referring the dispute in time and does his explanation satisfy the factors as mentioned below.

4.4 To that end, in the case of **Dlamini v Progress Housekeeping CC (2001) 22 ILJ 1024 (CCMA) 1028** the commissioner indicated that in determining whether to grant condonation or not the following factors needs to be taken into account: the **degree of lateness**, the **degree of fault**, the **reasonableness of the explanation**, the **prejudice to the parties**, the **prospect of success in the main dispute**. The aforementioned factors were re-iterated in the case of **Job L. Boshop v Mac Donalds Transport NC5139 7 July 2000 CCMA**.

5. BACKGROUND:

5.1 The Applicant is employed as the care coordinator in Medscheme and is based at the employer's offices in Cape Town.

5.2 On the or about **July 2025** the Applicant was absent due to health reasons, the employees leave days got exhausted due to this prolonged absence and because of previous intermittent sick leaves taken. All the employees' leave days were exhausted, including sick leave and annual leave were exhausted at the time.

5.3 The Respondent's process is that before it can apply a no work no pay principle, it firstly exhausts the employees annual leave in leu of sick leave when sick leave is finished, it also assists employees with special leave which in this case it also did in order to accommodate the employee. This is the case in this matter where the respondent firstly used annual leave of the

employee in lieu of sick leave absence. The employee was not paid as he was not at work and had no leave days, however this was not a deduction, but an employee did not render any services and therefore was not paid rightfully so.

6. DEGREE OF LATENESS:

6.1 Disputes of Unfair labour practice must be referred to CCMA within 90 days of the date of the act or omission.

6.2 It is interesting to note that the Applicant deliberately leaves out the information of how late his referral is. This is consistent with his untruthful character, he is aware how long his matter is out of the prescribed time frames of the CCMA, yet he does not state that information. The Applicant's referral is more than 40 days late; I submit that this is excessive, especially for someone who had all the time in the world to refer the matter to the CCMA.

6.3 According to the Applicant he got to be aware of what he needed to do in November or December due to mental issues, but the employee has been working all along since August without any mental issues, but the applicant failed to explain how he got to know of his oversight 40 days later. The employee was addressed by his management team and HR on the issue of unpaid leave. It is also difficult to accept the argument of mental issues from the applicant, as he raised the issue of the alleged victimization in August or September, maybe that was also an oversight. So, when the matter of victimisation was dealt with in August or September why did the employee not refer the matter of unfair deduction then, as clearly there were no mental problems then. The mental issues are an excuse and this whole referral is an afterthought matter. The applicant's failure to take accountability of his lateness and lack of proper pleadings about the degree of lateness on his part, shows his lack of regard for the commission, its processes, and resources.

6.4 The rationale for referring the matter within the required time frames is *inter alia*, to avoid potential prejudice that the Applicant may suffer at the hands of the Respondent. In this case it cannot be argued that the delay was occasioned by the Respondent but by the sloppiness and lack of regard of the most reasonable periods placed by the legislature.

7 REASON FOR LATENESS:

7.1 It is the employer's contention that the Applicant has not provided a compelling explanation for the lateness of his referral to the CCMA. It is interesting to note that the Applicant in his referral claims that he only became aware of what he needed to do in November 2025 but that is not

true as the employee raised another matter with Cheryl-Dawn who is a HR business partner in August/September. Applicant still does not explain how he became aware of his rights in this matter or the lack thereof, this is difficult to accept as the truth as the applicant is the member of the union and if he needed advice he would have gotten it from union representative. It is further interesting that the employee chose not to include this information in his referral affidavit to the CCMA but just makes references that he was ignored by the company.

7.2 The Respondent made the Applicant aware of the reasons why he was not fully paid on the **23rd of July 2025**, when the applicant enquired about the shortfall on his salary, however the applicant only referred the matter to CCMA on the **5th of December 2025** which was more than 40 days late and more than 120 days later from the date of the act or omission.

7.3 The reasons advanced by the Applicant are not truthful, and for that reason alone the CCMA must not entertain this application. In the matter between **Molla v Shal & NO others (2007) 28 ILJ 1028 (LAC)**: Zondo JP as he then was with McCall AJA and Kruger AJA. Concurring held: [34] "I do not have the slightest hesitation in concluding that this is a case where the period of delay is excessive and the appellant's purported explanation for the delay is no explanation at all. If ever there was a case in which one can conclude that good cause has not been shown for condonation without considering the prospects of success, then this is the one. Where in an application for condonation, the delay is excessive and no explanation has been given for that delay or an "explanation" has been given but such explanation amounts to no explanation at all, I do not think it is necessary to consider the prospects of success."

7.4 The Applicant has failed to proffer plausible reasons for the delay. On this ground alone the application should be dismissed, and this abuse of the CCMA services should be condemned with the contempt that it deserves.

8 PROSPECTS OF SUCCESS:

8.1 I submit the Applicant has no prospects of success to the main case. The Respondent acted in line with the law and its own policy that when an employee is sick it will utilize sick leave, once sick leave is exhausted, and employee continues to be absent it will utilize annual leave in lieu of sick leave and once all leaves are exhausted it will then apply unpaid leave. There is nothing illegal about that and the lack of explanation from the applicant as to how the respondent acted unlawfully shows clearly that the employee does not know what he is referring to. The contractual obligation between the respondent and the applicant is that the employer will pay an employee after the employee has rendered his services and not merely for being an employee. It is very clear on what the Applicant did, that to breach the rule as he did, the

consequences thereof of are a dismissal. There is no evidence nor reasons that the applicant will provide to show that he was supposed to be paid a full salary for the month of **July**.

- 8.2 The Applicant's submission lacks explanation on the prospect of success, and a mere claim of unfair labour practice cannot be seen as a prospect of success, and the matter has been wrongly referred as well.
- 8.3 The applicant did not even follow an internal process of formally logging a grievance regarding the alleged unlawful deduction after it was addressed in August but decided to only communicate about it in November which is after the prescription period and then on the 4th of December wrote to the company executive members just before he referred the matter to the CCMA. The respondent submits that this is just a ploy by an applicant to force the company to pay him salary that he is not legally entitled to.
- 8.4 The respondent submits that it did everything to help the employee with his absence to an extent that there was special leave approved for him at the time because the respondent was acting as a responsible employer. The issue of unpaid leave was addressed by his management team (Mapule Mashale) who is the senior manager and HR team that supports the Gems business unit. The respondent will argue that the applicant was addressed on the issue of unpaid leave several times.
- 8.5 The respondent submits that the applicant has really no prospects of success as his reasons given around victimization and intimidation have no relevance but are used to sensationalize his dispute and have nothing to do with main dispute. It further makes it difficult even to understand as to what the real dispute of the applicant is.
- 8.6 The applicant has failed to discharge compelling reasons that are convincing that he has prospects of success other than mere accusations of victimization and intimidation. Therefore, the respondent submits that the condonation application of the applicant should be dismissed as there are no prospects of success should the matter go to the main case. The applicant has not even demonstrated that he has a reasonable chance of succeeding nor has he provided facts and evidence to support his claims.

9 PREJUDICE:

- 9.1 Having regard to submissions made above it is my view that the Respondent will suffer severe prejudice should the application be granted because the Respondent will be required to use resources that are Joburg based to fly to Cape Town to deal with this unsubstantiated dispute, considering that the delay has been caused by the applicant in this instance. Respondents will also have to take management and HR out of the office to bring them to the CCMA as witnesses for something that the applicant is aware of why he was not paid and that management assisted him to not be further negatively affected by his absence through approving special leave for him.
- 9.2 It would be unfair to now hold the Respondent to ransom given that the Applicant has erred in this regard.
- 9.3 It will be prejudicial for the respondent to be expected to go through the main case without any good cause shown by the applicant in terms of the prospects of success in the main.

In conclusion:

The Applicant's affidavit is riddled with untruthful submissions, meaning he has not been truthful or forthcoming and expects the CCMA to grant him condonation even though his application is just a mere ask without factual basis. This is just a fishing expedition and abuse of the system. It is therefore my considered view that this application should be dismissed with cost.

The applicant will not succeed in the main case if the reasons is just a claim of unlawful deduction and victimisation.

It is further submitted that the Applicant does not have prospects of success in the main application as it the Respondent's view that there is no unfair labour practice that the applicant has been subjected to.

It is further submitted by the respondent that whether there is good cause shown on the lateness but that cannot be the only determining factor in granting of condonation, but the applicant should satisfy all the elements which I believe he has not given sufficient evidence or explanation in terms of prospects of success and prejudice.

It is clear that the applicant will not succeed in the main if the reasons is just a claim of unlawful deduction or invalid no work no pay claim.

~~Notary~~

Deponent

I certify that on this 10 day of December 2025, the deponent signed the declaration in my presence and declared that:

- a) I know and understand the contents hereof;
- b) I have no objection to taking this oath;
- c) I consider this oath to be binding on my conscience and uttered the words: "I swear that the contents of the declaration are true, so help me God."



Commissioner of Oaths

CS
7268134-3
Nelson I.B.

